

CV-24-000847 ORTIZ, ALEJANDRO vs CITY OF MODESTO - Plaintiff's Motion to Compel Person Most Knowledgeable - GRANTED, per the parties' stipulation.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: Pursuant to the parties' Joint Status Statement filed with the Court on September 10, 2026, and the stipulations therein contained, the Court hereby orders that the following witnesses shall be deposed by Plaintiff with Defendant to provide dates for said depositions no later than September 22, 2026: A. City of Modesto PMQ re Signage and lane markings (strippage) on Coffee Road, the intersection and Scenic property to reflect all signs from the time of their installation, including installation, and replacement of signage following the collisions in 2021, 2022 and 2023 (subject collision): I. Toby Wells

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A. City of Modesto PMQ re Signage and lane markings (strippage) on Coffee Road, the intersection and Scenic property to reflect all signs from the time of their installation, including installation, and replacement of signage following the collisions in 2021, 2022 and 2023 (subject collision):

I. Toby Wells - PMQ COM Engineering

2. Richard Mendoza or John Sphar COM PMQ Transportation

B. Modesto Police Department Witnesses of Subject Collision

3. MPD Ryan Olson

4. MPD Ivan Pimmentel

5. MPD Ryan Curley – (Counsel for City of Modesto Swingle to confirm availability

6. MPD J. Contreras – (Counsel for City of Modesto to confirm availability

7. MPD Octavio Cisneros – (Counsel for City of Modest to confirm availability

8. MPD Geoffrey Crowley

9. MPD Kyle Johnson

10. MPD Gillian Schuller

C. City of Modesto - Prior and Subject Collision Related Signage Replacement

11. Alex Ingwersen - City of Modesto Dept. of Transportation

12. Christopher Cummings - City of Modesto Dept. of Transportation

D. Modesto Police Department - Investigation of Prior Collisions in 2021 and 2022

13. MPD Ofer. Jon McQueary - Star 13257 (investigated 2021 collision)

14. MPD Ofer. Ryan Sellers - Star 13017 (investigated 2022 collision))

E. Lay Witnesses

15. Michelle Ciraulo

16. Amber Vierra (09/14/2026)

17. Ruben Escobar (09/10/2026)

18. Ryan Lebbert (09/10/2026)

F. Defendants Scenic Development, Inc. & Thousand Oaks Executive Center, LLC LPM Services, Inc. dba Liberty Property Management intend to depose the (19) PMK of Sutter Health Memorial Medical Center, Clinical Laboratory, with a deposition date of either October 6 or 13, 2026.

G. Defendant City of Modesto intends to depose (20) Kaitlyn Ortiz-Acho and (21) MariaGuadalupe Ortiz-Acho.

Any records request related to any of the depositions shall require the production of the requested documents no later than three (3) court days prior to the scheduled deposition.